

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Bodah 2	Team: Team # 5	CCRB Case #: 200008750	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 12/16/2000 3:30 PM	Location of Incident: § 87(2)(b)	Precinct: 48	18 Mo. SOL 6/16/2002	EO SOL 6/16/2002	
Date/Time CV Reported Tue, 12/19/2000 1:20 PM	CV Reported At: Precinct	How CV Reported: Phone	Date/Time Received at CCRB Tue, 12/19/2000 4:18 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. CPT Michael Pilecki	00000	880208	PBBX TF

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Raymond Marino	08095	916134	PBBX TF
2. POM Henry Ramirez	07186	925956	049 PCT

Officer(s)	Allegation	Investigator Recommendation
A.CPT Michael Pilecki	Discourtesy: Captain Michael Pilecki spoke obscenely and rudely to § 87(2)(b) and four others.	
B.CPT Michael Pilecki	Off. Language: Captain Michael Pilecki made remarks to § 87(2)(b) and four others based upon race.	
C.CPT Michael Pilecki	Abuse: Captain Michael Pilecki arrested § 87(2)(b) and four others.	

Synopsis

On December 16, 2000, § 87(2)(b) was arrested by Officer Raymond Marino of the Bronx Task Force, along with at least four friends: § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b). § 87(2)(b) and his friends were outside of § 87(2)(b) in the Bronx, between § 87(2)(b), at the time. A friend of theirs, § 87(2)(b) had been the victim of a homicide in that location during the early morning hours of § 87(2)(b). The group was present to pay their respects at a makeshift memorial to the victim. Captain Michael Pilecki, the commanding officer of the Bronx Task Force, was present at the scene during the arrests; Officer Marino was his operator that day. § 87(2)(b) alleged that Captain Pilecki referred to he and his friends as “niggers” and “motherfuckers” in ordering them to disperse. § 87(2)(b) further alleged that Captain Pilecki order the group to cross the street, then ordered them to be arrested for jaywalking when they complied. The group was subsequently taken to the 48 Precinct, where they were questioned by detectives about the shooting of § 87(2)(b). § 87(2)(b) **has failed to cooperate with the investigation, and efforts to locate and obtain sworn statements from the other victims have been unsuccessful.** § 87(2)(g)

Results of Investigation

This case was received at CCRB on December 19, 2000 and assigned for investigation on December 21. Five calls were made and two letters sent to § 87(2)(b) by January 5, 2001. On that date, § 87(2)(b) called the CCRB, made a brief statement (enclosures 4-4a), and scheduled an interview at the CCRB for January 8. § 87(2)(b) did not appear at his CCRB appointment, and subsequently failed to respond to five telephone calls made and three letters sent between January 8 and February 8, 2001.

On January 22, 2001, police documents were received that indicated the identities of the four other victims and one possible witness, § 87(2)(b) (enclosures 9-9a and 11-11a.). A letter simultaneously received from Captain Pilecki (enclosure 6) identified him as the subject officer § 87(2)(g). Letters were sent to the addresses of § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b). The letter to § 87(2)(b) was returned because the address did not exist (enclosure 17g). Attempts to locate telephone numbers produced a number for § 87(2)(b) and for § 87(2)(b), a friend of § 87(2)(b). Five telephone calls were made to § 87(2)(b) between February 6 and 22, with no answer. § 87(2)(b) was contacted, and provided an address for § 87(2)(b) in the Vernon C. Bain Center, where he was incarcerated. On January 23, § 87(2)(b) called the CCRB from Vernon C. Bain Center and made a brief statement (enclosures 5-5a). On February 24, 2001, a field trip was made to the Vernon C. Bain Center to interview § 87(2)(b). It was discovered that § 87(2)(b) had been released earlier that morning on bail. Another letter was sent to § 87(2)(b) and a phone call placed to § 87(2)(b), both without results.

Other investigative steps were taken, including a field trip to § 87(2)(b) and interviewing two officers (enclosures 6a-6b and 8b-8c). § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: